

CCP § 1985.3(b).

CCP §§ 1012 and 1013, both of which are in Chapter 5, describe service by mail. Defendants' service of the subpoenas by mail was appropriate.

As to the content of the subpoena, Defendants the main issues appear to be whether the subpoena should be limited as to time. Defendants have presented a declaration by Mark A. Crane, D.D.S., M.D. who has been a licensed dentist since 1992. Dr. Crane also has a medical degree and an Oral & Maxillofacial Surgery Certificate and is Board certified in maxillofacial surgery. Dr. Crane opines that based on the allegations made by Plaintiff in the Complaint, Plaintiff's full dental history is relevant as TMJ symptoms are frequently caused by long-standing, chronic, degenerative conditions and Plaintiff claims she suffered injury to her temporomandibular joints (TMJ). Dr. Crane further opines that because Plaintiff is 78 years old, the full dental records are more important to obtain.

Plaintiff makes a number of other objections including but not limited to overly broad, vague, ambiguous, unjustly burdensome, oppressive, unintelligible, not reasonably calculated to lead to discovery of admissible evidence, and lack of good cause. The Court has reviewed Attachment 3 to the subpoena issued on September 5, 2024 and overrules each objection. The records sought are specifically and clearly listed and appear to be relevant to the case. There is no indication that UCSF producing such records will burden Plaintiff in any way. There is good cause for the records sought.

The Motion for Order Quashing Subpoena Duces Tecum is **DENIED**. Plaintiff did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiff is to prepare the Order.

MORENO VS. RIDDLE, ET AL.

Case Number: 24CV-0204521

Tentative Ruling on Motion to Further Responses to Special Interrogatory No. 24: Defendants Barbara Jean Riddle and Carol Ann Lowe request that Plaintiff Nekelish Dawn Moreno be compelled to provide a further response to Special Interrogatory No. 24. Plaintiff opposes the motion.

Meet and Confer. Defendants were required to meet and confer with Plaintiff prior to filing the motion. Defendants have provided evidence of good faith meet and confer efforts.

Merits. "Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." CCP § 2017.010.

Special Interrogatory No. 24 reads:

If your answer to the proceeding interrogatory is yes, for each such cell phone, please state the phone number (including area code), the cell phone provider and the name under which the cell phone is registered, and the name of the person/entity who contracted with the provider for the cell phone service.

Special Interrogatory No. 23 reads "At the time of the SUBJECT INCIDENT, did you have in your possession any cell phone?" Plaintiff made objected and responded, "Yes." to No. 23. Plaintiff's response to No. 24 is "Objection. This interrogatory is irrelevant and not reasonably likely to lead the discovery of admissible evidence. In addition, this interrogatory invades Plaintiff's constitutional right to privacy, and is overbroad, burdensome, and oppressive."

Plaintiff has provided no basis for the burdensome or oppressive objections. The information sought is relevant to the case and is likely to lead to admissible discovery. The request is not overbroad as it merely seeks the phone number and subscriber information for any cell phones that were in Plaintiff's possession (which the Court opines to mean inside the vehicle) at the time of the collision in this matter. These objections are overruled.

As to the privacy objection, while it is true that actual cell phone records themselves may not end up being discoverable depending on what is eventually sought, No. 24 seeks the phone number, the service provider, and the name of the person(s) to whom the phone is registered and contracted for services. This is not particularly sensitive information. The potential privacy interests are far outweighed by Defendant's interest in obtaining such records as they may lead to evidence on the issue of contributory negligence or potential witnesses.

Sanctions. The Court shall impose a monetary sanction against a party who unsuccessfully makes or opposes a motion to compel further responses unless it finds that one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. CCP § 2030.300(d). The Court does not find that Plaintiff acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Defendants seek \$1,260 in monetary sanctions which is comprised of four hours of attorney time at \$300 per hour plus the \$60 filing fee. The Court finds this to be a reasonable request and will impose sanctions as requested. Plaintiff's request for sanctions is denied.

The motion is **GRANTED**. Plaintiff shall provide a verified response to No. 24 within ten days of the Notice of Entry of Order. Sanctions are imposed against Plaintiff and counsel in the amount of \$1,260. Defendants provided a proposed Order that will be modified to reflect the Court's ruling.

MYERS VS. QUALITYCARE HOMES

Case Number: CVCV21-0198789

Tentative Ruling on Applications for Judgment Debtor Examinations: Plaintiff Brenda Myers seeks examination of Defendants Quality Care Home, Inc. and Gurmeel Singh. CCP § 708.110 requires personal service be made on the judgment debtor at least thirty calendar days prior to the examination. There are no proofs of service on file. Without service on the judgment debtors, the matter is dropped from calendar.

IN RE: REED

Case Number: 24CV-0205385

Tentative Ruling on Petition for Change of Name: Petitioner seeks to change the last name of her minor daughter. The Court notes that a Certificate of Publication was filed and accepted on September 30, 2024. When a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). Petitioner filed a Proof of Service on October 11, 2024. Service is defective because the father was served on September 25, 2024 for a hearing on September 30, 2024. However, the father filed a Written Objection to the Change of Name by Father on October 10, 2024. There is no proof of service for the Objection. The father is deemed to be served. The parties are reminded that they must serve the other parent with a copy of any documents they file with the Court.

The father requests a continuance of the hearing to allow time for him to file a memorandum with the Court. This is a reasonable request and it will be granted. Due to the objection, the Court will set this matter for hearing at a time and date convenient for the parties. The father is reminded that appearances through CourtCall are permitted on the Law & Motion Calendar without leave of Court. **An appearance is necessary on today's hearing to select a hearing date.**